

24STCV08210 24STCV08210

County: los-angeles

Division: Civil Law and Motion

Department: 415

Hearing date: 2026-07-28

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C415%2C07%2F28%2F2026

Source SHA-256: f31b7cde7936fa7a5db762f58fb9feeca897f1cd487c6fec56f59f190304a0da

Case Number: 24STCV08210 Hearing Date: July 28, 2026 Dept: 415

TENTATIVE

RULING

DEPARTMENT

415

HEARING DATE

July

28, 2026

CASE NUMBER

24STCV08210

MOTION

Motion

for Summary Judgment, or, in the Alternative, Summary Adjudication

MOVING PARTY

Defendant

Cummins Inc.

OPPOSING PARTY

Plaintiff

Robert Reed

BACKGROUND

Defendant Cummins

Inc. ("Defendant") moves for summary judgment on Plaintiff Robert Reed's ("Plaintiff") operative first amended complaint, or, in the alternative, summary adjudication of the causes of action therein.

However, Defendant

has not "repeated, verbatim, in the separate statement of undisputed material facts" each issue on which Defendant seeks summary adjudication and identified "[e]ach supporting material fact claimed to be without dispute with respect to" each issue. (Cal. Rules of Court, rule 3.1350, subds. (b), (d)(1)(B).)

Accordingly, the

Court denies the motion for summary adjudication as procedurally improper. "There is little flexibility in the procedural imperatives of [Code of Civil Procedure section 437c], and the issues raised by a motion for summary judgment (or summary adjudication) are pure questions of law. As a result, section 437c is unforgiving; a failure to comply with any one of its myriad requirements is likely to be fatal to the offending party." (Brantley v. Pisaro (1996) 42 Cal.App.4th 1591, 1607.)

Therefore, the

Court considers the motion as a motion for summary judgment. Plaintiff opposes the motion.

LEGAL STANDARD – MOTION FOR SUMMARY JUDGMENT

"[T]he party moving for summary judgment bears the burden of persuasion that there is no triable issue of material fact and that he is entitled to judgment as a matter of law[.] There is a triable issue of material fact if, and only if, the evidence would allow a reasonable trier of fact to find the underlying fact in favor of the party opposing the motion in accordance with the applicable standard of proof." (Aguilar v. Atlantic Richfield Co. (2001) 25 Cal.4th 826, 850.) "[T]he party moving for summary judgment bears an initial burden of production to make a prima facie showing of the nonexistence of any triable issue of material fact; if he carries his burden of production, he causes a shift, and the opposing

party is then subjected to a burden of production of his own to make a prima facie showing of the existence of a triable issue of material fact." (Ibid.)

EVIDENCE

Plaintiff's

objections to Defendant's evidence are overruled.

DISCUSSION

The Song-Beverly

Consumer Warranty Act (Song-Beverly) applies to "any new product or part thereof that is used, bought, or leased for use primarily for personal, family, or household purposes, except for clothing and consumables." (Civ. Code, § 1791, subd. (a).)

In the instant

case, Plaintiff contends he purchased a 2021 Tiffin Allegro Bus with an engine which Defendant manufactured. (See Declaration

of Mikle S. Jew, Exhibit 5, p. 33.) In

response to Defendant's written discovery, Plaintiff admitted Defendant repaired the engine and the vehicle "has not experienced any repeat

occurrences" of the matters necessitating repairs between October 2022 and

December 2022, and he has not sought additional repairs to the engine since the completion of repairs in December 2022. (Id.,

Exhibit 1, pp. 8-10.) Plaintiff also

admitted he has used the vehicle for transportation purposes since it was repaired in December 2022. (Id.,

Exhibit 2, pp. 7-8.)

With respect to

Plaintiff's breach of implied warranty of merchantability claim, Defendant's

evidence in this regard satisfies its burden to establish the engine is "fit

for the ordinary purposes for which" Plaintiff uses it. (Civ. Code § 191.1, subd. (a)(2); see also Declaration of Mikle S. Jew, Exhibit 3, p. 5.)

Accordingly, Defendant has shifted the burden to Plaintiff to raise

triable issues of material fact as to whether the engine is not fit for

ordinary use such that Plaintiff may maintain a claim for breach of implied warranty under Song-Beverly.

Likewise,

Defendant's evidence meets its burden to show Plaintiff cannot prevail on the claim for breach of express warranty, because Defendant repaired any defects in the engine. To prevail on the claim for breach of express warranty, Plaintiff must show "the manufacturer or his representative did not repair the nonconformity after a reasonable number of repair attempts." (Donlen v. Ford

Motor Co. (2013) 217 Cal.App.4th 138, 152.)

Defendant's evidence shows it successfully repaired the engine. As such, Defendant has shifted the burden to Plaintiff to raise triable issues of material fact as to whether Plaintiff may prevail on the claim for breach of express warranty.

In opposition,

Plaintiff advances only the declaration of Plaintiff's counsel, David N. Barry

("Counsel"). Counsel does not explain

how he has personal knowledge of issues concerning the vehicle and the repairs

thereto such that Counsel is competent to testify and authenticate documents. As such, his testimony is inadmissible. (Evid. Code, § 702.) As Plaintiff fails to advance any admissible

evidence, Plaintiff has concomitantly failed to raise triable issues of

material fact as to whether Plaintiff can prevail on the claims in the

operative first amended complaint. Thus,

the motion for summary judgment is granted.

Defendant is ordered to give notice of the

Court's ruling and to file proof of service of same.